

state. *Id.* In the present case, Governor Abbott expressly requested that the Secretary of State investigate whether Castro is a fugitive, a determination that *Hyatt* and other authorities expressly dictate that a governor not only may, but must consider.⁴

Minnesota raises the concern that Texas’s construction of the Extradition Clause and the related statutes permits an asylum state to thwart the purpose of these authorities by investigating a demand for extradition indefinitely. On this point, the Court does not reach whether circumstances could arise when an asylum state’s prolonged delay in the investigation of an extradition demand would constitute the constructive denial of the demand, so as to create an issue ripe for adjudication. The record in the present matter does not present such circumstances. Governor Abbott requested an investigation by the Texas Secretary of State about 60 days after receiving Minnesota’s extradition demand. The record contains no direct evidence indicating that Governor Abbott made this request for the purpose of delay, or that the investigation will continue for a prolonged period. The threat of an indefinite consideration of Minnesota’s extradition request does not currently exist.

Minnesota also argues that Sheriff Trevino will release Castro on August 27, 2026, and that upon his release, Castro may flee the country, which would significantly hinder Minnesota’s efforts to prosecute its case against him. The Court agrees that Castro’s flight to Mexico would

⁴ The Court has doubts that caselaw supports the construction of “fugitive” that Texas is considering. According to Texas, it is investigating whether, in the context of interstate extradition, a fugitive is a person who volitionally leaves the state in which he is charged. Here, Texas proposes, Castro did not leave Minnesota volitionally, but did so in response to a directive from ICE, his employer. But as the Supreme Court long ago explained, a fugitive is a person who, “having within a state committed that which by its laws constitutes a crime, when he is sought to be subjected to its criminal process to answer for his offense, he has left its jurisdiction, and is found within the territory of another.” *Roberts v. Reilly*, 116 U.S. 80, 97 (1885). Under this rubric, the focus rests not on the accused’s reason for leaving the state, but simply on whether he in fact left. Consistent with this broad construction of “fugitive,” cases that have concluded that an individual was not a fugitive all involved persons who were not within the state demanding extradition when the alleged offense occurred. *See, e.g., Hyatt v. New York*, 188 U.S. 691 (1903); *Fowler v. Ross*, 196 F.2d 25, 35 (D.C. Cir. 1952); *Moncrief v. Anderson*, 342 F.2d 902 (D.C. Cir. 1964). And in one case, a circuit court concluded that a prisoner transferred by state custodial authorities from Kansas to Wyoming became a fugitive from Kansas for purposes of extradition. *Gee v. Kansas*, 912 F.2d 414, 419 (10th Cir. 1990) (“Once petitioner *was moved* outside Wyoming State boundaries, he became a fugitive from justice within the meaning of 18 U.S.C. § 3182.”) (emphasis added). The transferred individual in *Gee* made no more of a volitional act to leave Kansas than Castro did to leave Minnesota. But the Tenth Circuit still concluded that the accused was a fugitive for purposes of interstate extradition.